

The Canals Act, 1864

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State of Bihar - Act

The Canals Act, 1864

BIHAR

India

The Canals Act, 1864

Act 5 of 1864

Published on 8 June 1964

Commenced on 8 June 1964

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The Canals Act, 1864

Bengal Act

5 of 1864

[Dated 8th June, 1964]

[An Act to amend the consolidate the law relating to the collection of tolls on canals and other lines of navigation, and for the construction and improvement of lines of navigation, within the Provinces under the control of the Lieutenant-Governor of Bengal]

[This includes the present State of Bihar.]

.

Preamble. - Whereas it is expedient to amend and consolidate the law relating to the collection of tolls on [* *]

[the' replied by Act 1 of 1903.]

canal and lines of navigation [* *]

[specified in the Regulations and Acts in the Schedule to this Act annexed' replied by Act 1 of 1903.]

and to authorise the collection of tolls on such other lines of navigation as may hereafter be rendered subject to the provisions of this Act, and to provide for the construction and improvement of lines of navigation; It is enacted as follows:-

1.

Interpretation.

- The following words shall have the several meanings hereby assigned to them, unless where a contrary intention shall appear from the context, that is to say:-

Vessel. - The word "vessel" shall include any ship, barge, boat, raft, timber, bamboos, or floating materials, propelled in any manner;

Line of navigation. - The words "line of navigation" shall mean any navigable channel subject to the provisions of this Act;

Channel. - The word "channel" shall include any river, canal, khal, nala; or waterway, whether natural or artificial;

Person. - The word "person" shall include any company, association, or body of persons, whether incorporated or not.

[* * * *]

[Number and gender' replied by Act 1 of 1903.]

2.

What navigable channels may be rendered subject to the provisions of Act.

- It shall be lawful for the [State]

[Substituted by A.L.O.]

Government from time to time, by [notification]

[For list of notifications under Section 2, See the B.O.R.O., Volume I, Part VI.]

, to that effect published in the [Official Gazette]

[Substituted by A.O. for 'Calcutta Gazette']

, to declare that the provisions of this Act shall apply to any navigable channel specified in such notification;

and from and after such publication the provision of this Act shall apply to, and be in force as regards, such navigation channel [* *]

[Replied by Act 1 of 1903.]

.

3.

By whom navigable channels may be made.

- It shall be lawful for the [State]

[Substituted by A.L.O.]

Government from time to time, to [authorise]

[For an Order made under Section 3, See the B.O.R.O., Volume I, Part VI.]

any person to make and open any navigable channel, or to clear and deepen any navigable channel, and to stop any watercourse, or make any tracking path, or do any other act necessary for the making or improvement of any such channel; and any navigable channel made under this section shall be rendered subject to the provisions of this Act in the manner prescribed in the last preceding section.

[Mode of obtaining land for the purpose. - The [State]

[See now Act 1 of 1894.]

Government may take possession, as for a public purpose, of any land that may be necessary for the execution of any of the abovementioned works, under the provisions of [* *]

[Replied by Act 1 of 1903.]

any [* *]

[Replied by Act 1 of 1903.]

Act [* *]

[Replied by Act 1 of 1903.]

in force for the taking possession of land for public purposes].

4.

Bar of suit against [Government]
[Substituted by A.L.O.]

- No action or suit shall be brought against the [Government]
[Substituted by A.L.O.]

, in respect of any injury or damage, caused by, or resulting from, any act done under the last preceding section.

5.

Tolls to be paid on lines of navigation subject to Act.

- Tolls at such rates as shall be fixed in manner hereinafter mentioned shall be paid in respect of all vessels entering upon, or passing along any of the lines of navigation subject to the provisions of this Act.

Proviso. - Provided that such tolls shall be payable only so long as such line of navigation shall be open.

6.

State Government may fix and alter rates of tolls.

- [State]

[The Substituted by A.L.O.]

Government may fix, and from time to time alter, the rates at which such [tolls]

[For a list of Orders, made under Section 6, fixing rates of tolls, see B.O.R.O., Volume I, Part V.]

shall be levied :

Provided that no toll shall be levied, and no alteration of any rate of toll shall have effect, until notice shall have been published in the [Official Gazette]

[Substituted by A.O. for 'Calcutta Gazette'.]

, for such period as the said [State]

[The Substituted by A.L.O.]

Government may fix, of the intention to levy or alter such toll, and of the rate and place at which such toll is to be levied.

7.

Publication of rates of toll at every toll-house.

- Notification of the rates of toll and of the places of collection shall be at all times exhibited to public view at every toll-house where toll is levied under this Act, [in the Hindu language in Devanagri script]

[Substituted by Bihar Act 27 of 1954.]

,

8.

State Government to appoint persons to collect tolls, who may farm collection.

- The [State]

[The Substituted by A.L.O.]

Government shall appoint such persons as [it]

[Substituted by A.L.O. for 'he'.]

may think fit to collect tolls under this Act, and it shall be lawful for any person so appointed to farm [the collection of tolls to any other person]

[As to the recovery of sums due from a farmer or his surety, see B. & O. Act 4 of 1914. Section 8(6), Schedule I.]

, with the sanction of the [State]

[The Substituted by A.L.O.]

Government or to employ any other person in such collection.

The person to whom the collection of tolls may be farmed out, or who may be employed in the collection of them, shall have power to collect and be authorised to receive them, in the like manner as any person appointed as aforesaid.

9.

Payment of tolls how enforced.

- If any toll due under the provisions of this Act in respect of any vessel shall not be paid on demand to the person authorised to collect the same, it shall be lawful for such person to seize such vessel, and any furniture thereof, and to detain the same;

and such person shall, within twenty-four hours of such seizure and detention, report the same to the nearest Collector, or Deputy Collector of the district in which the seizure has been made, or other public officer duly authorised by

Government in that behalf;

and on receipt of this report the Collector, Deputy Collector or other officer as aforesaid shall publish a notice appointing a day for the sale of the said vessel and any furniture thereof.

The sale shall be held at some period not less than fifteen days from the date of the publication of notice of sale; and if the toll and also any expenses occasioned by non-payment be not paid, or sufficient cause for non-payment be not shown, at before the time of sale to the Collector, Deputy Collector or other officer as aforesaid, such officer shall sell the vessel and furniture seized, or so much thereof as may be necessary to pay the toll and also any expenses occasioned by non-payment.

So much of the property seized as may not have been sold, and so much of the sale-proceeds as may be in excess of the sum necessary for satisfying the toll and for defraying the expenses occasioned by non-payment, shall be returned to the person in charge of the vessel.

10.

Penalty for evasion of toll.

- Any person who shall refuse or evade, or attempt to evade, any toll due under this Act shall be punished, on conviction before a Magistrate, with a fine which may extend to fifty rupees, or with simple imprisonment in lieu of fine which may extend to one month.

11.

Rules relating to lines of navigation.

- It shall be lawful for the [State]

[Substituted by A.L.O. for 'Provincial'.]

Government from time to time to make rules not repugnant to any law in force and to repeal, alter and amend the same, for the management of any line of navigation subject to this Act, and for regulating the conduct of persons employed for any of the purposes of this Act, and this [State]

[Substituted by A.L.O. for 'Provincial'.]

Government may affix fines as penalties for the infringement of such rules not exceeding fifty rupees for any one infringement, or five rupees a day for any continuing infringement.

Such rules may contain directions for any of the following amongst other matters:-

for determining the tonnage of vessels and their measurement;

for fixing the number and width of vessels to be allowed to pass into, or out of, or through any line of navigation at one time or abreast;

for determining the length of time during which vessels may remain stationary on any line of navigation, and the amount of demurrage to be paid by vessels remaining stationary beyond such time;

for regulating the mode in which and the places at which tolls are to be levied under this Act;

for the removal of sunken vessels and obstructions; and for the storing and disposal of the cargo of vessels seized under this Act.

12.

Publication of such rules.

- Rules shall not be passed until the same have been published in the [Official Gazette]

[Substituted by A.O. for 'Calcutta Gazette'.]

for a period of six weeks, and after that time the rules shall be published as passed, with such alterations (if any) as to the [State]

[Substituted by A.L.O. for 'Provincial'.]

Government shall deem fit.

The rule so published as passed shall not have effect until the expiration of two weeks after such last publication; and all rules so published shall, until the same be repealed or altered, be of like effect as if they were inserted in this Act.

Copies of all rules, [in the Hindi Language in Devanagiri Script]

[Substituted by Act 27 of 1954.]

, shall be exhibited to public view at every place where toll is collected.

13.

Appointment of Supervisor with power to remove obstruction.

- It shall be lawful for the [State]

[Substituted by A.L.O. for 'Provincial'.]

Government to appoint any person to be the supervisor of any line of navigation subject to the provisions of this Act; and such person shall be empowered to cut down and remove any tree which may have fallen or may be likely to fall into such line of navigation, and to remove any sunken vessel, and to prevent or remove any other nuisance or obstruction to navigation, of whatever description, whenever he may think it necessary.

14.

Mode of exercising such power.

- Whenever such Supervisor shall consider that the cutting down and removal of any tree or the removal of any other obstruction is necessary, he may in cases of emergency at once remove the same, and may for that purpose enter on any private property.

In cases not of an emergent nature, he shall serve a notice in writing on the owner or occupier of such private property, directing him to remove the same within reasonable time.

If the owner or occupier cannot be found, notice may be served by notification to be affixed in some conspicuous place in the nearest village.

If the owner or occupier shall not remove the obstruction within the time given in the notice, the Supervisor may proceed to remove it himself and may for that purpose enter on any private property.

Payment of all expenses of such removal may be enforced by the sale of the thing removed in the manner provided for the recovery of tolls in Section 9 of this Act.

15.

Supervisor may forbid construction of bandels, etc.

- Whenever in the opinion of such supervisor the construction of any bandel or other contrivance for fishing, or for any other purpose, in any line of navigation, is likely to cause obstruction to the free and safe transit of such line of navigation, he may, by a notice in writing to be served on the owner or person in charge of such bandel or other contrivance, or (if such owner or other person cannot be found) to be affixed at some conspicuous place in the nearest village, forbid the construction of such bandel or other contrivance.

16.

Penalty for causing obstruction to line of navigation.

- Any person who shall wilfully cause or shall aid in causing any obstruction to any line of navigation, or any damage to the banks or works of such line of navigation, or who shall wilfully omit to remove such obstruction after being lawfully required so to do, shall be punished on conviction before a Magistrate with simple imprisonment which may extend to one month, or with fine which may extend to fifty rupees, or with both, and shall also be liable to pay such fine as may be sufficient to meet all reasonable expenses incurred in abating or removing such obstruction, or in repairing such damage.

17.

[* * *]

[Replied by Act 1 of 1903]

18.

Offences by whom punishable.

- If any person shall be guilty of an offence against the provisions of this Act on any line of navigation subject to this Act, such offence shall be punishable by any Magistrate having jurisdiction over any district or place adjoining such line of navigation, or adjoining either side of that part of the line of navigation in which such offence shall be committed;

and such Magistrate may exercise all the powers of a Magistrate under this Act, in the same manner, and to the same extent, as if such offence had been committed locally within the limits of his jurisdiction, notwithstanding the offence may not have been committed locally within such limits;

and in case any such Magistrate shall exercise the jurisdiction hereby vested in him, the offence shall be deemed, for all purposes, to have been committed locally within the limits of his jurisdiction.

19.

[* * *]

[Replied by Act 12 of 1873]

20.

Short title.

- This Act may be cited as "The Canals Act, 1864".
of Regulations and Act Repealed
[Repealed by Act 1 of 1903]
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